

SOTOMAYOR, J., concurring in part

in reliance on our decisions, the States' interests here in avoiding a modest number of retrials—emphasized at such length by the dissent—are much less weighty. They are certainly not new: Opinions that force changes in a State's criminal procedure typically impose such costs. And were this Court to take the dissent's approach—defending criminal-procedure opinions as wrong as *Apodaca* simply to avoid burdening criminal justice systems—it would never correct its criminal jurisprudence at all.

To pick up on the majority's point, *ante*, at 108, in that alternate universe, a trial judge alone could still decide the critical facts necessary to sentence a defendant to death. *Walton v. Arizona*, 497 U. S. 639 (1990), overruled by *Ring v. Arizona*, 536 U. S. 584 (2002). An officer would still be able to search a car upon the arrest of any one of its recent occupants. *New York v. Belton*, 453 U. S. 454 (1981), holding limited by *Arizona v. Gant*, 556 U. S. 332 (2009). And States could still deprive a defendant of the right to confront her accuser so long as the incriminating statement was “reliable.” *Ohio v. Roberts*, 448 U. S. 56 (1980), abrogated by *Crawford v. Washington*, 541 U. S. 36 (2004). The Constitution demands more than the continued use of flawed criminal procedures—all because the Court fears the consequences of changing course.

III

Finally, the majority vividly describes the legacy of racism that generated Louisiana's and Oregon's laws. *Ante*, at 87–88, 99–100, and n. 44. Although Ramos does not bring an equal protection challenge, the history is worthy of this Court's attention. That is not simply because that legacy existed in the first place—unfortunately, many laws and policies in this country have had some history of racial animus—but also because the States' legislatures never truly grappled with the laws' sordid history in reenacting them. See generally *United States v. Fordice*, 505 U. S. 717, 729 (1992) (policies that are “traceable” to a State's *de jure* racial segregation